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IN THE CIRCUIT COURT, FOURTH JUDICIAL CIRCUIT, IN AND FOR DUVAL COUNTY, FLORIDA

STEFEN WYNN,

Plaintiff,

vs. Case No.: 23-CA-008801

CITY OF NEPTUNE BEACH,

Defendant.
_____/

PLAINTIFF'S RESPONSE TO DEFENDANT'S MOTION TO DISMISS AMENDED COMPLAINT

Plaintiff, Stefen Wynn, responds to Defendant, the City of Neptune Beach's Motion to Dismiss his Amended Complaint (with included Motions to Strike and for More Definite Statement) and states:

I. The Public Whistleblower Act Must be Construed Liberally

Plaintiff's cause of action is straightforward, consisting of only one count for retaliation under the Florida Public Sector Whistle-blower Act ("FPWA"), Fla. Stat. § 112.3187. The FPWA is a broad statute enacted with the intent to prevent retaliatory action against employees and persons who make certain disclosures to an agency. See Fla. Stat. § 112.3187. As discussed below, the FPWA's provisions must be construed liberally; so, when properly applied, the facts alleged in the Amended Complaint state a cause of action.

1. The Florida Supreme Court Mandates a Liberal Construction of the FPWA

"In circumstances where the legislative enactment is so clearly remedial in nature, the canon of strict construction takes a back seat." City of Jacksonville v. Smith, 159 So. 3d

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888 (Fla. 1st DCA 2015) (discussing Irven v. Dep't of Health & Rehab. Servs., 790 So. 2d 403, 405 (Fla. 2001)). In Irven, a former child protective investigator sued her employer, the Department of Health and Rehabilitative Services, under the FPWA, claiming she was terminated in reprisal for having raised questions about the appropriateness of a venue transfer in a child dependency case. Dep't of HRS v. Irven, 724 So.2d 698, 699 (Fla. 2d DCA 1999), quashed, 790 So.2d 403 (Fla.2001). After a jury verdict in her favor, the Department appealed to the Second District, arguing that the FPWA did not waive sovereign immunity for the type of claim the investigator asserted. Id.

On appeal, the Second District of Florida addressed the "determinative issue" of "whether the acts and communications by [the investigator] were `whistle-blower' acts, as defined and protected by the `Whistle-Blower's Act.'" Irven, 724 So.2d at 699. In holding that the investigator's claim "did not constitute behavior protected under the [FPWA]," the Second District relied upon the "strict construction" canon, stating:

> it is clear to us that the "Whistle-Blower's Act,". . . clearly and unequivocally waives sovereign immunity for the purposes of the "Remedies" and "Relief" afforded by subsections 112.3187(8) and (9). It is equally clear to us, however, that because any waiver of sovereign immunity must be clear and unequivocal. . ., the waiver must be limited to the acts or conduct clearly and unequivocally prohibited or protected against. Therefore, the waiver must be strictly construed and applied. A protection against acts not clearly delineated as prohibited or protected must not be implied.

724 So.2d at 699. "Viewing the [FPWA] in this narrow light, the [Second District] found that petitioner's complaints were not protected and that to decide otherwise would turn `every disagreement by an agency employee with the handling of a matter subject to judicial supervision and control into a whistle-blower action.'" 790 So.2d at 405 (quoting district

court).

On review in the Florida Supreme Court, the central question was again whether the investigator's acts and communications were actionable such that a waiver of sovereign immunity applied. Id. In an analysis that directly applies here, the Florida Supreme Court addressed whether the "Whistle Blower's Act should be strictly or liberally construed," holding that its remedial nature trumped the canon of strict construction. Id. In reversing, the Florida Supreme Court held that the Second District's "strict construction is incompatible with the broad language in the FPWA which establishes a wide scope of activity that may give rise to its protections." Id. It concluded that the Department's "argument that the [FPWA] should be strictly construed because it is in derogation of the common law is unavailing `When a statute is both in derogation of the common law and remedial in nature, the rule of strict construction should not be applied so as to frustrate the legislative intent.'" 790 So.2d at 406 (noting a liberal construction applies to a "new and independent cause of action, unknown to the common law…") (citation omitted). So, here as well, the FPWA must be liberally applied to the facts alleged in the Amended Complaint.

2. Liberal Construction of the FPWA Applies to Each of its Parts

The specific intention behind the enactment of the FPWA was to prohibit public employers "from taking retaliatory action against an employee who reports to an appropriate agency violations of law on the part of a public employer." § 112.3187(2); see Ujcic v. City of Apopka, 581 So.2d 218, 219 (Fla. 5th DCA 1991); see also Martin Cnty. v. Edenfield, 609 So.2d 27, 29 (Fla.1992) (…. "the Whistle–Blower's Act is a remedial statute designed to encourage the elimination of public corruption by protecting public employees

who 'blow the whistle.' As a remedial act, the statute should be construed liberally in favor of granting access to the remedy.") (citation omitted). Therefore, the Florida Supreme Court has made it clear that the FPWA should be interpreted liberally, holding that it is a "remedial statute designed to encourage the elimination of public corruption by protecting public employees who 'blow the whistle'. . . the statute should be construed liberally in favor of granting access to the remedy." Irven v. Dep't of Health and Rehab. Serv., 790 So.2d 403, 405-06 (Fla. 2001) (quoting Martin County v. Edenfield, 609 So.2d 27, 29 (Fla. 1992)); see, e.g., Henley v. City of N. Miami, 329 So. 3d 791 (Fla. 3d DCA 2021); Igwe v. City of Miami, 208 So. 3d 150 (Fla. 3d DCA 2016); Rustowicz v. N. Broward Hosp. Dist., 174 So. 3d 414 (Fla. 4th DCA 2015); Johnson v. Sch. Bd., No. 2:20-cv-484-FtM-66MRM, 2021 U.S. Dist. LEXIS 53071 (M.D. Fla. Feb. 10, 2021).

In deciding whether one or more of Plaintiff's complaints falls within the FPWA's scope and is thereby protected activity, the lesson of Irven and related cases from the Florida Supreme Court is clear: "The statute should be construed liberally in order to give effect to the legislation." Irven, 790 So. 2d at 406. Likewise, any doubt as to whether Plaintiff's claim is actionable under the [FPWA] must be resolved "in favor of granting access to the remedy." Id. at 405, citing Hutchison v. Prudential Ins. Co., 645 So.2d 1047, 1049 (Fla. 3d DCA 1994). As discussed below, the facts alleged in Plaintiff's Amended Complaint satisfy every part of the FPWA.

3. Summary of the Relevant Provisions of the FPWA

There are three different parts of the FPWA. The first is Fla. Stat. § 112.3187(5), titled "Nature of Information Disclosed." The second is Fla. Stat. § 112.3187(6), titled "To Whom

Information Disclosed." Last is Fla. Stat. § 112.3187(7), titled "Employees and Persons Protected." Defendant challenges whether Plaintiff qualifies under § 112.3187(5) and § 112.3187(6); thus, those sections discussed infra. Moreover, Fla. Stat. § 112.3187(7) specifically permits complaints to an employee's "supervisory officials." When each part is applied to the facts of the Amended Complaint, it shows that Plaintiff's Amended Complaint states a cause of action.

a. Nature of Information Disclosed [§ 112.3187(5)]

Pursuant to Fla. Stat. § 112.3187(5) ("Nature of Information Disclosed") to be protected activity under the FPWA, the information Plaintiff disclosed may include either one of two general categories:

> (a) Any violation or suspected violation of any federal, state, or local law, rule, or regulation committed by an employee or agent of an agency or independent contractor which creates and presents a substantial and specific danger to the public's
>
> 1) health,
> 2) safety, or
> 3) welfare
>
> or[1]
>
> (b) Any act or suspected act of

[1] While section 112.3187(5) does not include "or" or "and" between subsections (a) and (b), courts have interpreted this provision as requiring either (a) or (b). E.g., Vickaryous v. Sch. Bd. of Collier Cty., No. 2:18-cv-315-FtM-99MRM, 2019 WL 949303, *3 (M.D. Fla. Feb. 27, 2019) (granting temporary reinstatement and finding that plaintiff made a showing under subsection (b)); Griffin v. Sun N' Lake of Sebring Improvement Dist., No. 2:16-cv-14062, 2017 WL 5202683, *2-4 (S.D. Fla. Jan. 20, 2017) (granting temporary reinstatement and finding plaintiff made a showing under subsection (b) but not subsection (a)); King v. State of Fla., 650 F. Supp. 2d 1157, 1162 (N.D. Fla. 2009) (posing subsections (a) and (b) as alternative required showings).

1) gross mismanagement,
2) malfeasance,
3) misfeasance,
4) gross waste of public funds, or
5) gross neglect of duty

committed by an employee or agent of an agency or independent contractor.

(Emphasis supplied).

Thus, Fla. Stat. § 112.3187(5)(b) includes any act or suspected act of gross mismanagement, malfeasance, misfeasance, gross waste of public funds, or gross neglect of duty. Also, the definition of misfeasance is very broad. See Kimmons v. Crawford, 92 Fla. 652, 109 So. 585, 587 (Fla. 1926) (defining misfeasance as "the performance of an act in an unlawful, injurious, or negligent manner"). In Rosa v. Dep't of Children & Families, the First District Court of Appeals, in considering the rulings from the Florida Supreme Court, found that "misfeasance" includes "negligent acts committed by an employee of an agency." 915 So. 2d 210,212 (Fla. 1st DCA 2005).

The FPWA defines "[g]ross mismanagement" to mean "a continuous pattern of managerial abuses, wrongful or arbitrary and capricious actions, or fraudulent or criminal conduct which may have a substantial adverse economic impact." Fla. Stat. § 112.3187(3). Neither malfeasance nor misfeasance is defined in the statute; however, the Florida Supreme Court noted in lrven that "[m]isfeasance is defined as the 'improper doing of an act which a person might lawfully do; and 'malfeasance' is the doing of an act which a person ought not do at all."' [Id. at 407 n.3 (quoting Black's Law Dictionary 1000 (6th ed. 1990))]; see also Kimmons v. Crawford, 92 Fla. 652, 109 So. 585, 587 (Fla. 1926)(defining misfeasance as "the performance of an act in an unlawful, injurious, or negligent manner").

Likewise, in Rosa v. Dep 't of Children & Families, the First District Court of Appeals, in considering the rulings from the Florida Supreme Court, found that "misfeasance" includes "negligent acts committed by an employee of an agency." Rosa, 915 So. 2d at 212.

Plaintiff disclosed information or violations protected under § 112.3187(5). See, e.g., Amended Complaint ¶¶ 9, 11, 13, 15, 16, 17, 18, 23, 25, 27, 35-36. For example, in paragraph 9, he alleges that he "submitted a written and signed complaint to Defendant regarding suspected fraud in its building and permit department" to Defendant's City Auditors. This is just one of his protected disclosures. Another is described in paragraph 8, that on October 20, 2022, he "hand delivered written copies of the same information he reported to Purvis Gray on March 15, 2022 to the City Council …" He also made numerous other reports both verbally and in writing. See Amended Complaint ¶11-13, 15-16, 18, 21, 23, 25-27, 34-35, 44. Further, in paragraph 13, he alleges that he reported mismanagement of funds "both verbally and in writing in August, 2022"; these disclosures were made during negotiations he was required to attend. Moreover, as discussed below, these verbal complaints count as well – not all complaints under the FPWA must be written to be protected. See Igwe v. City of Miami, 208 So.3d 150 (Fla. 3d DCA 2016).

As if that is not enough, as described in paragraph 16, he also "reported [a] potential conflict of interest" to the Police Chief during a meeting. In paragraph 17, he alleges that he "stated to the Chief that Commander Key and Councilor Key were committing a crime by abusing and overspending Defendant's police budget." In paragraph 18, he alleges that he "reported Commander Key's refusal to follow proper budgetary protocols." In paragraphs

25 and 26, he alleges that he reported to and discussed with Mayor Elaine Brown "all that had transpired between Councilor Key and Plaintiff." Moreover, in paragraphs 35 and 36, he alleges that he submitted "another written complaint" to the City Attorney, the City's Chief Financial Officer, and the entire City council detailing how Council Key harassed him at a Council meeting. So, these allegations are covered by § 112.3187's protections – such as those covering claims of gross mismanagement, malfeasance, misfeasance, and/or gross waste of public funds; any one of which counts.

b. To Whom Information Should be Disclosed [§ 112.3187(6)]

Section 112.3187(6) ("To Whom Information Disclosed") discusses "to whom information [must be] disclosed" for the information to be protected under the FPWA. The first sentence of the statute provides:

> The information disclosed under this section must be disclosed to **any agency** or federal government entity having the authority to investigate, police, manage, or otherwise remedy the violation or act, including, but not limited to, the Office of the Chief Inspector General, an agency inspector general or the employee designated as agency inspector general under s. 112.3189(1) or inspectors general under s. 20.055, the Florida Commission on Human Relations, and the whistle-blower's hotline created under s. 112.3189.

Id. (emphasis added).[2] Thus, the information must be disclosed to "any agency" "having the authority to investigate, police, manage, or otherwise remedy the violation or act."

i. Defendant is an "Agency"

To be sure, although not specifically raised by Defendant, the "agency" is Defendant

[2] Regarding the first sentence of § 112.3187(6), when the disclosure does not concern a local governmental entity, only the first sentence of § 112.3187(6) applies.

itself because the definition of agency is very broad. See § 112.3187 (3)(a) ("'Agency' means any state, regional, county, local, or municipal government entity, whether executive, judicial, or legislative; any official, officer, department, division, bureau, commission, authority, or political subdivision therein; or any public school, community college, or state university."). The broad definition of "agency" is not unique to § 112.3187. See Florida Statute Section 216.011(1)(qq) ("State agency" or "agency" means any official, officer, commission, board, authority, council, committee, or department of the executive branch of state government). Moreover, § 112.31895(1)(a) (Investigative procedures in response to prohibited personnel actions) also references Section 216.011 when defining "agency." ("If a disclosure under s. 112.3187 includes or results in alleged retaliation by an employer, the employee or former employee of, or applicant for employment with, a state agency, as defined in s. 216.011…, emphasis supplied). Although §216.011(1) is for "the purpose of fiscal affairs of the state, appropriations acts, legislative budgets, and approved budgets," its definition is consistent with the liberal construction of the word "agency" for purposes of the FPWA. See Allen v. Florida Intern. Univ., 981 So. 2d 1286 (Fla. 3d DCA 2008).

In Allen, the plaintiff (Isabel del Pino Allen), a Florida International University (FIU) employee, complained about certain financial practices at FIU. Id. at 1287. In December 2001, she filed an administrative complaint with the Florida Commission on Human Relations under the state's public-sector whistleblower law. Id. On February 9, 2002, FIU terminated her. Id. Four months later, the commission issued its fact-finding report, finding that Allen had established a prima facie (minimally sufficient) case of retaliation based on her whistleblowing and holding that the public-sector whistleblower law applied to her

case. Id. The commission recommended reinstatement, back pay, and benefits and offered to assist in conciliation for 60 days. Id.

In August, however, the commission issued a notice terminating the investigation because it had been unable to conciliate the complaint and informed Allen that she had 180 days after receiving the notice to file a civil action. Id. She did, in fact, file a civil action three months later in November, alleging she had been wrongfully discharged by FIU in violation of the whistleblower law. Id. The trial court dismissed Allen's complaint, finding it was untimely because universities are not among the group of state agencies over which the commission has jurisdiction in whistleblower complaints under Florida law. Id. The court found that since the commission did not have jurisdiction, Allen was required to file a lawsuit within 180 days after the adverse employment action. Id. Because she did not file her lawsuit directly in state court, it was untimely, the court ruled. Id. Allen appealed. Id.

The appeals court reversed, holding that Allen's claim was timely. Id. at 1288. The court reviewed the statutory language pertaining to the remedies portion of the whistleblower law and reasoned that since "boards" are included under the list of "state agencies," the Board of Regents (which then became part of the State Board of Education) would qualify as a "board." Id. Because the university was under the Board of Regents, it qualified as a "board," thereby giving the commission jurisdiction to hear Allen's whistleblower complaint first. Consequently, her case was allowed to proceed in state court because it was not untimely. Id. Likewise, here, the definition of "agency" most clearly includes Defendant.

ii. Defendant Can "Otherwise Remedy the Violation or Act"

Defendant's own employees (such as the its Chief Financial Officer, Roth), Defendant's City Auditors, Purvis Gray, its CPAs and its entire City Council including Councilor Key could rectify the violations and acts of which Plaintiff complained. Thus, the disclosures to them are protected. See also Burden v. City of Opa Locka, No. 11-22018-CIV, 2012 WL 4764592, at *13 (S.D. Fla. Oct. 7, 2012) (the Attorney General has found individuals to be "appropriate local officials" where they are empowered to investigate complaints and make reports or recommend corrective action.) Accordingly, the persons who whom Plaintiff complained were in a position that could remedy the acts of which he complained; Bennett v. City of Slidell, 728 F.2d 762, 769 (5th Cir. 1984) (delegation of policymaking authority can be made by "policymaking power by an express statement, by a job description or by other formal action."); See also Hoefling v. City of Miami, 811 F.3d 1271, 1280 (11th Cir. 2016) ("Although Mr. Hoefling may ultimately have to identify (and provide proof concerning) a single final policymaker in order to survive summary judgment or prevail at trial…we do not think that he had to name that person in his complaint in order to survive a Rule 12(b)(6) motion.").In sum, the essence of the FPWA is that the information has to be reported to someone who is empowered to take corrective action; so §112.3187(6) is satisfied.

c. § 112.3187(5) and (6) Must Be Read in Light of § 112.3187(2)

The legislative intent behind § 112.3187 also must be considered when interpreting § 112.3187(5–7), as expressly stated in § 112.3187(2). See Igwe v. City of Miami, 208 So.3d

150 (Fla. 3d DCA 2016). In Igwe, the plaintiff (Igwe) filed a retaliatory discharge claim against the City of Miami under the Whistle-blower's Act, alleging he was terminated as a result of protected disclosures. Igwe was the Independent Auditor General ("IAG") for the City of Miami. Id. As the IAG, Igwe was responsible for reporting his financial analysis to the City of Miami Commission. Id. at 151. In addition, Igwe was subpoenaed by the United States Securities and Exchange Commission ("SEC") during an investigation the SEC and Federal Bureau of Investigation ("FBI") conducted regarding the City of Miami's potential securities law violations. The disclosures Igwe made were per his job duties as the City of Miami's IAG. Id. at 152.

The City of Miami moved for summary judgment, arguing that the FPWA only applies to those who make voluntary disclosures, and because Igwe's disclosures were made as part of his job duties as IAG, he was not protected by the FPWA. Id. The trial court agreed with the City of Miami's position, finding that Igwe's disclosures were not protected under the FPWA, and entered final summary judgment in favor of the City. In doing so, the trial court found that Igwe's disclosures were not voluntary because his disclosures consisted of "things that the job obligated him to report," and his cooperation with the SEC and FBI was also part of his duties as IAG. Id.

The Third District of Florida reversed the order entering final summary judgment in favor of the City of Miami, concluding Igwe was a protected person under the FPWA. The court recognized that under section 112.3187(7), there are five independent categories of protected persons, and that Igwe is a protected person under two categories. First, his disclosures to the City of Miami Commission fell under the category of "employees who

file any written complaint to their supervisory officials." Second, his disclosures to the SEC fell under the category of persons 'who are requested to participate in an investigation, hearing, or other inquiry conducted by any agency or federal government entity." Id. at 155 (quoting § 112.3187(7)).

Importantly, when interpreting § 112.3187(7), the court utilized § 112.3187(2), stating that the City's interpretation of § 112.3187(7) ran contrary to § 112.3187(2). Id. at 155. It held that this legislative intent, as expressed in subsection 2, is the "polestar of statutory interpretation." Id. at 152–153, emphasis supplied. Thus, the court concluded that "section 112.3187(7) protects those who make disclosures regarding 'improper use of governmental office, gross waste of funds, or any other abuse or gross neglect of duty on the party of any agency, public officer, or employee,' even if they do so in the course of carrying out their job duties." Id. at 156.[3]

As previously mentioned, and as pled in paragraph 13 of the amended Complaint, the protected disclosures referenced therein "occurred during negotiations between the union for the Defendant's police department and Plaintiff, who was designated as the Chief Negotiator for the Defendant City. Plaintiff was required by the Defendant City to attend these negotiations during which Plaintiff reported the serious overspending by the police department to Defendant's Chief of Police, Defendant's Chief Financial Officer, and the City Clerk, all of whom were either chief executive officers or other appropriate local

[3] Likewise, if there is any remaining doubt about the broad nature of § 112.3187(5–6), those provisions must be read in conjunction and in light of Florida's legislative intent. Moreover, it must be read considering the remainder of § 112.3187, such as § 112.3187(7).

officers, and all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff."

Thus, this case is different than Scheirich v. Town of Hillsboro Beach 2008 WL 186621 (S.D. Fla. 2008) because, here, there are protected disclosures that are not written. These disclosures are also protected conduct - even if not in a written document – and therefore Plaintiff cannot be forced to attach all the complaints that back up his complaint because they are not all in writing.

d. Employees and Persons Protected [§ 112.3187(7)]

Fla. Stat. §112.3187(7) ("Employees and Persons Protected") explains that employees who file any written complaint to their supervisory officials are also protected by the FPWA:

> a) who disclose information on their own initiative in a written and signed complaint; or
>
> b) who are requested to participate in an investigation, hearing, or other inquiry conducted by any agency or federal government entity; or
>
> c) who refuse to participate in any adverse action prohibited by the Act; or
>
> d) who initiate a complaint through the whistle-blower's hotline; or
>
> e) employees who file any written complaint to their supervisory officials; or
>
> f) employees who submit a complaint
>
> > - to the Chief Inspector General in the Executive Office of the Governor, or
> >
> > - to the employee designated as agency inspector general under s. 112.3189(1), or

- to the Florida Commission on Human Relations.

(Emphasis supplied). Thus, Fla. Stat. §112.3187's protections specifically include employees who file any written complaint. Accordingly, Plaintiff's reports to Chief Financial Officer (Roth), City Auditors, Purvis Gray, its CPAs, and its entire City Council including Councilor Key could rectify the violations and acts of which Plaintiff complained. Moreover, as described in paragraph 13, of the amended Complaint, the protected disclosures referenced therein "occurred during negotiations between the union for the Defendant's police department and Plaintiff, who was designated as the Chief Negotiator for the Defendant City. Plaintiff was required by the Defendant City to attend these negotiations during which Plaintiff reported the serious overspending by the police department to Defendant's Chief of Police, Defendant's Chief Financial Officer, and the City Clerk, all of whom were either chief executive officers or other appropriate local officers, and all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff." Thus, the complaints were protected by Fla. Stat. §112.3187 via §112.3187(7).

II. A More Definite Statement is Not Appropriate

Motions for more definite statement have been "roundly criticized and its efficacy marginalized by a number of commentators." Castle Key Ins. Co. v. Wooden Family Tr., 321 So. 3d 346, 350 (Fla. 1st DCA 2021), citing Henry P. Trawick, Florida Practice & Procedure § 11:11 (2020-2021) (footnote omitted) ("The motion is a useless anachronism. There are no allegations so vague or ambiguous that the responding pleader cannot deny them or plead that he is without knowledge of them. If the pleading states a cause of action,

logically it must be definite enough to respond to. If the pleading does not state a cause of action, it should be dismissed."); Bruce J. Berman & Peter D. Webster, 4 Fla. Prac., Civil Procedure § 1.140:43 (Apr. 2021) (footnote omitted) ("It is difficult, indeed, to imagine how, on the one hand, a complaint can have sufficient clarity in alleging a cause of action both to meet the pleading requirements of Rule 1.110 and be able to survive dismissal under subdivision (b) of Rule 1.140, while on the other hand, the very same complaint can be so 'vague and ambiguous' as to make it impossible for the defendant to frame an answer. It is thus difficult to imagine how a credible motion can be made under subdivision (e), or that trial judges would be particularly receptive to such motions."); Philip J. Padovano 5 Fla. Prac., Civil Practice § 7:28 (2021 ed.) (footnote omitted) ("Arguably, this remedy is one of little value. If a pleading is so vague and ambiguous that it would be unreasonable for the court to expect a response, that pleading would be subject to dismissal.").

Here, Plaintiff's Amended Complaint is a simple, one count complaint – not at all "shotgun" in nature. See Castle Key Ins. Co., 321 So. 3d at 352 ("Rule 12(e) motions are particularly useful when addressing so called 'shotgun pleadings,' and some courts have ordered repleading sua sponte when faced with such complaints...."); see also Weiland v. Palm Beach Cnty. Sheriff's Office, 792 F.3d 1313, 1321 – 23 (11th Cir. 2015) (a complaint only constitutes a shotgun pleading if (1) "each count adopts the allegations of all preceding counts," (2) it is "replete with conclusory, vague, and immaterial facts not obviously connected to any particular cause of action," (3) it does not separate each cause of action into different counts, or (4) it "assert[s] multiple claims against multiple defendants without specifying which of the defendants are responsible for which acts or omissions.", citations

omitted). Therefore, Defendant's request for a more definite statement should be denied.

III. There Are No Immaterial Allegations

Under rule 1.140(f): "A party may move to strike ... redundant, immaterial, impertinent, or scandalous matter from any pleading at any time." Fla. R. Civ. P. 1.140(f). "A motion to strike matter as redundant, immaterial or scandalous should only be granted if the material is wholly irrelevant, can have no bearing on the equities and no influence on the decision." Pentecostal Holiness Church, Inc. v. Mauney, 270 So.2d 762, 769 (Fla. 4th DCA 1972). Here, the allegations are all relevant, at least having a "a bearing on the equities." See McWhirter, Reeves, McGothlin, Davidson, Rief & Bakas, P.A. v. Weiss, 704 So. 2d 214, 216 (Fla. 2d DCA 1998) ("Here, the allegations in paragraph 7 were relevant and definitely had a bearing on the equities. Therefore, paragraph 7 should not have been stricken.") Likewise, none of Plaintiff's Amended Complaint should be struck.

IV. Plaintiff Pled Satisfaction of All Conditions Precedent

As a final matter, Defendant's instant motion at paragraph 18 claims that more "facts must be pleaded so that the Court can determine whether the claims are ripe to be heard by the Court and whether the Court has jurisdiction over the claims." Citing §112.3187(8)(b) or (c). However, filing administrative charges such as with the Florida Commission on Human Relations (FCHR) is also not jurisdictional – a matter resolved by the U.S. Supreme Court in Fort Bend County v. Davis, No. 18-525, 2019 WL 2331306 (U.S. June 3, 2019).

In Fort Bend County, the Court ruled that the precondition in Title VII of the Civil Rights Act of 1964 requiring employees to file a charge with the Equal Employment Opportunity Commission (EEOC) before commencing an action in court is not

jurisdictional. Rather, the charge-filing requirement is a "nonjurisdictional claim-processing rule," Justice Ginsburg wrote in a unanimous opinion. "[A] rule may be mandatory without being jurisdictional, and Title VII's charge-filing requirement fits that bill," the Court ruled. See also Jennings v. American Postal Workers Union, 672 F.2d 712, 714 (8th Cir. 1982) (EEOC Charge filing is not jurisdictional but is merely a condition precedent); Monroe v. McDonald's USA, LLC, No. 4:10cv490-RH/WCS, 2011 WL 13238372 (N.D. Fla. Jan. 19, 2011) (same); Richardson v. Recreational Vehicle Park Mgmt, LLC, 330 So. 3d 104, footnote (Fla. 1st DCA 2021) ("As noted in other FCRA cases, we often find guidance from federal decisions interpreting Title VII of the Civil Rights Act of 1964 in cases like this one because the FCRA is patterned after Title VII," citation omitted); Smith v. City of Atl. Beach, 3:18-CV-1459-J-34MCR, 2020 WL 708145, at *1 (M.D. Fla. Feb. 12, 2020) (applying Fort Bend to the FCRA); see also Mingo v. Ironclad Projects LLC, 19-CIV-62202-RAR, 2020 WL 13389751, at *2 (S.D. Fla. July 14, 2020):

> Second, **the employee-numerosity requirements found in Title VII, the FWA, and the FCRA are factual elements of said claims, not jurisdictional prerequisites.** See Thomas v. Alabama Home Const., 271 F. App'x 865, 867 (11th Cir. 2008) (quoting Arbaugh v. Y & H Corp., 546 U.S. 500, 516 (2006)) (holding that the "threshold number of employees for application of Title VII is an element of a plaintiff's claim for relief, not a jurisdictional issue."); Rustowicz v. N. Broward Hosp. Dist., 174 So. 3d 414, 419 (Fla. 4th DCA 2015) **("Florida applies the Title VII analysis to retaliatory discharge under the Whistleblower Act**...."); Sutherland v. Boehringer-Ingelheim Pharm., Inc., 700 F. App'x 955, 958 (11th Cir. 2017) (citing Harper v. Blockbuster Entm't Corp., 139 F.3d 1385, 1387 (11th Cir. 1998)) (concluding that because **"the FCRA was patterned after Title VII, decisions construing Title VII are therefore applicable when considering claims under the FCRA**"). Consequently, the Court finds that the Motion warrants denial as to Counts III-XI of the SAC because Plaintiff has alleged facts sufficient to survive dismissal under Rule 12(b)(6).

(emphasis supplied). These are not jurisdictional pleading requirements but are conditions precedent, which may be generally alleged.

Here, Plaintiff pled in paragraph 5 of the Amended Complaint that he satisfied all condition precedents. That is sufficient under Fla. R. Civ. Pro. Rule 1.120(c) because compliance with any administrative or presuit requirements is not jurisdictional; no further pleading is required. Now that Plaintiff has done so, Defendant is required to challenge that with specificity – if it can. See Rule 1.120 (Pleading Special Matters), Fla. R. Civ. P. 1.120(c) ("Conditions Precedent. In pleading the performance or occurrence of conditions precedent, it is sufficient to aver generally that all conditions precedent have been performed or have occurred. A denial of performance or occurrence shall be made specifically and with particularity."). The issue was put to rest recently in Summerlin v. L3 Communications Integrated Systems, L.P., 348 So. 3d 673, 677-78 (Fla. 1st DCA 2022) in which the court held:

> Thus, in evaluating a motion to dismiss, "the trial court may look no further than the four corners of the complaint[.]" Id. at 368. Meaning, "the court's review is limited to an examination solely of the complaint and its attachments." Santiago v. Mauna Loa Invs., *LLC*, 189 So. 3d 752, 755 (Fla. 2016). Here, the trial court circumvented the four corners rule by straying from the complaint, resolving factual issues that were not before it, and relying on a document—the EEOC charge—which was only attached to the motion to dismiss. All of this was error. See Hewett-Kier, 775 So. 2d at 375–76 ("[I]n ruling on the motion to dismiss, [the trial court] explicitly relied upon the design contract which was only attached to the motion to dismiss. Because the trial court improperly went beyond the four corners of the complaint, we must reverse."); see also Santiago, 189 So. 3d at 757 ("The district court's examination of one complaint and its attachments to determine the sufficiency of a separate complaint to state a cause of action clearly contravenes the longstanding four-corners rule explained above."); Norwich v. Glob. Fin. Assocs., *LLC*, 882 So. 2d 535, 537 (Fla. 4th DCA 2004) ("While the defenses of res judicata and collateral estoppel may be resolved through a motion for summary judgment, the trial court erred when it ventured outside the four

corners of the complaint, took judicial notice of the final judgment of dissolution of marriage, and dismissed the complaint with prejudice.").

Moreover, Appellant's allegation that she satisfied all conditions precedent to bringing her claim had to be accepted as true and "all reasonable inferences" had to be drawn in her favor. Abruzzo v. Haller, 603 So. 2d 1338, 1340 (Fla. 1st DCA 1992). Thus, her general averment was sufficient to withstand Appellee's motion to dismiss. Williams v. City of Jacksonville, 191 So. 3d 925, 927 (Fla. 1st DCA 2016) ("Our review of the complaint shows that the general allegations of compliance with sections 95.11(3)(a) and 768.28(6)(a), Florida Statutes, were sufficient to allege compliance with the conditions precedent to the lawsuit."); Bank of Am., Nat'l Ass'n v. Asbury, 165 So. 3d 808, 809–10 (Fla. 2d DCA 2015) ("Florida Rule of Civil Procedure 1.120(c) establishes a special pleading rule in regard to conditions precedent: 'In pleading the performance or occurrence of conditions precedent, it is sufficient to aver generally that all conditions precedent have been performed or have occurred.' ... Under this rule a plaintiff is allowed to allege in a generalized fashion that all the conditions precedent to a cause of action, whatever they may be, have either occurred or been performed."). While this court has recognized that parties can waive procedural defects by agreeing to treat motions to dismiss like motions for summary judgment, See Brewer, 720 So. 2d at 604, there is nothing in the record suggesting Appellant made such a concession. To the contrary, Appellant repeatedly objected to the court's use of the discrimination charge to question whether she complied with the necessary conditions precedent. For this additional reason, the trial court erred in dismissing Appellant's complaint for failure to exhaust administrative remedies.

Thus, the written complaints are also not required attachments under Fla. R. Civ. P. 1.130(a) and Defendant's instant Motion should be **DENIED** in its entirety.

Respectfully submitted,

/s/ Marie A. Mattox

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ATTORNEY FOR PLAINTIFF

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing has been served this 28th day of January, 2024, via electronic filing to all parties of record.

/s/ Marie A. Mattox
Marie A. Mattox

208 So.3d 150
District Court of Appeal of Florida,
Third District.

Victor IGWE, Appellant,
v.
CITY OF MIAMI, Appellee.

No. 3D15–1307.
|
Oct. 13, 2016.
|
Rehearing Denied Dec. 20, 2016.

Synopsis

Background: City's independent auditor general filed complaint against city, alleging that the city retaliated against him by declining to renew his contract in response to his issuance of the written reports and cooperation and testimony before the Securities and Exchange Commission (SEC). The Circuit Court, Miami–Dade County, John Schlesinger, J., entered summary judgment for city, and auditor appealed.

Holdings: The District Court of Appeal, Rothenberg, J., held that:

auditor general was a protected person under Whistle-blower's Act, and

Act protects those who make disclosures regarding improper use of governmental office, even if they do so in the course of carrying out their job duties.

Reversed and remanded.

Procedural Posture(s): On Appeal; Motion for Summary Judgment.

***151** An Appeal from the Circuit Court for Miami–Dade County, John Schlesinger, Judge.

Attorneys and Law Firms

Amlong & Amlong, P.A., and William R. Amlong, Karen Coolman Amlong, and Ryan C. Brenton, Fort Lauderdale, for appellant.

Victoria Méndez, City Attorney, and Kerri L. McNulty, Assistant City Attorney, for appellee.

Themis Law Group, LLP, and Brian Calciano, St. Petersburg; Delegal Law Offices, P.A., and T.A. "Tad" Delegal, III, Jacksonville, for National Employment Lawyers Association, Florida Chapter, as amicus curiae.

Before SUAREZ, C.J., and ROTHENBERG and FERNANDEZ, JJ.

Opinion

ROTHENBERG, J.

Victor Igwe ("Igwe") appeals the trial court's entry of final summary judgment in favor of the City of Miami ("the City"), disposing of Igwe's retaliatory discharge claim, which was brought pursuant to section 112.3187, Florida Statutes (2011) ("the Whistle-blower's Act" or "the Act"), based on the trial court's conclusion that Florida whistle-blower protection does not extend to individuals who report misconduct as a part of their job description. Because we conclude that the trial court erred in its determination that Igwe was precluded from whistle-blower protection on the ground that he reported the City's misconduct while carrying out his duties as the Independent Auditor General ("IAG") for the City, we reverse.

BACKGROUND

According to the City Charter, the position of IAG was created in order to provide independent oversight and audit functions for the City, and the IAG has a duty to report to the City Commission regarding his conclusions and financial analysis. Miami, Fla. Charter, § 48. It is undisputed that, as part of his job, Igwe disclosed to the City Commission and the City's Mayor several instances of alleged misconduct between 2009 and 2011, including the following: (1) a report finding that the City had violated its financial integrity principles by engaging in improper interfund borrowing; (2) a report identifying the improper transfer of restricted Local Option Fuel Tax revenues into the City's general fund; (3) a report identifying another improper transfer of restricted stormwater utility revenues into the City's general fund; and (4) a report that the City was continuing to improperly transfer restricted revenues into the City's general ***152** fund, even after the issuance of the prior reports. Igwe also issued a report to the

City Commission and the City's Audit Advisory Committee, disclosing that the City Attorney had overpaid herself.

During this time period, the United States Securities and Exchange Commission ("SEC") and the Federal Bureau of Investigation ("FBI") also began investigating the City. In the course of its investigation of the City's potential securities law violations, the SEC subpoenaed Igwe to testify about the City's alleged misconduct. Igwe complied with the SEC's subpoena and testified. It is undisputed that Igwe's disclosures to the SEC and the reports to the City Commission were made in accordance with Igwe's job duties as IAG.

Thereafter, the City declined to renew Igwe's contract as IAG. In response, Igwe filed a one-count complaint, alleging that the City retaliated against him by declining to renew his contract in response to his issuance of the written reports and cooperation and testimony before the SEC. [1] The City moved for summary judgment, arguing that (1) Florida's whistle-blower protection only applies to those who make voluntary disclosures of misconduct, (2) Igwe's disclosures were not voluntary because they were required as a part of his job, and thus (3) Igwe was not protected by the Act.

The trial court entered an order granting the City's motion for summary judgment. Specifically, the trial court found that Igwe's disclosures were not voluntary because his disclosures consisted of "things that the job obligated him to report," and his cooperation with outside agencies like the SEC and the FBI were also a part of his job as IAG. The trial court also found that although Florida common law does not specifically address the issue, federal law in whistle-blower cases, *see* *Sassé v. U.S. Dep't of Labor,* 409 F.3d 773 (6th Cir.2005); *Huffman v. Office of Pers. Mgmt.,* 263 F.3d 1341 (Fed.Cir.2001), supports the trial court's conclusion that "plaintiffs do not engage in protected activity by disclosing violations of law as part of their job responsibilities." Therefore, the trial court concluded that Igwe's disclosures are not protected by the Whistle-blower's Act. Thereafter, Igwe timely appealed. [2]

ANALYSIS

We review the trial court's entry of summary judgment de novo. *Volusia Cnty. v. Aberdeen at Ormond Beach, L.P.,* 760 So.2d 126, 130 (Fla.2000). Summary judgment is only appropriate if there are no issues of material fact, and the moving party is entitled to judgment as a matter of law. Fla. R. Civ. P. 1.510(c). We also review the trial court's interpretation of a statute de novo. *Bay Cnty. v. Town of Cedar Grove,* 992 So.2d 164, 167 (Fla.2008).

As this case involves the interpretation of a statute, it is important to bear in mind ***153** that the polestar of statutory interpretation is the Legislature's intent. *Meeks ex rel. Estate of Meeks v. Florida Power & Light Co.,* 816 So.2d 1125, 1131 (Fla. 5th DCA 2002), *approved sub nom,* *BellSouth Telecomms. Inc. v. Meeks,* 863 So.2d 287 (Fla.2003). Additionally, a single provision of a statute cannot be read in isolation, and it must be construed together with other provisions which relate to the same subject matter. *Florida Dep't of Highway Safety & Motor Vehicles v. Hernandez,* 74 So.3d 1070, 1077 (Fla.2011) (stating that related statutory provisions should be read in pari materia). We are also mindful that statutes should not be interpreted in such a way that leads to an absurd or unreasonable result. *Amente v. Newman,* 653 So.2d 1030, 1032 (Fla.1995); *Yeste v. Miami Herald Publ'g Co., a Div. of Knight–Ridder Newspapers,* 451 So.2d 491, 493 (Fla. 3d DCA 1984) ("We are, of course, constrained by law to give full effect to the legislative purpose behind a statute and to avoid constructions which lead to absurd or unreasonable results.").

I. *Florida's Whistle-blower's Act*

Before we address the particular arguments raised by the City, we briefly discuss the statutory context within which the parties' disputes appear. We begin with the construction of section 112.3187(2), which sets forth the Florida Legislature's express intent when passing the Act:

> It is the intent of the Legislature to **prevent agencies** or independent contractors from taking retaliatory action against an **employee** who reports to an appropriate agency violations of law on the part of a public employer or independent contractor that create a substantial and specific danger to the public's health, safety, or welfare. It is further the intent of the Legislature to **prevent agencies** or independent contractors from taking retaliatory action against **any person** who discloses information to an appropriate agency alleging

> improper use of governmental office, gross waste of funds, or any other abuse or gross neglect of duty on the part of an agency, public officer, or employee.

§ 112.3187(2) (emphasis added).

The Act defines "agency" as "any state, regional, county, local, or municipal government entity, whether executive, judicial, or legislative; any official, officer, department, division, bureau, commission, authority, or political subdivision therein; or any public school, community college, or state university." § 112.3187(3)(a). The Act defines "employee" as "a person who performs services for, and under the control and direction of, or contracts with, an agency or independent contractor for wages or other remuneration." § 112.3187(3)(b). Thus, the Act was drafted with the intention of preventing the City, which falls under the definition of "agency," from taking retaliatory action against Igwe, who falls under both the definition of "employee" and the plain meaning of "any person," so long as the additional express requirements set forth in the Act are met. Two such requirements, which are set forth in sections 112.3187(6) and 112.3187(7), are in dispute in the instant case. We address each section in turn.

II. ***Igwe's disclosures were made to the correct entity under the Act***

Section 112.3187(6) identifies to whom a disclosure **must** be made:

> **TO WHOM INFORMATION DISCLOSED.**—The information disclosed under this section **must** be disclosed to any agency or federal government entity having the authority to investigate, police, manage, or otherwise remedy the violation or act, including, but not limited ***154** to, the Office of the Chief Inspector General, an agency inspector general or the employee designated as agency inspector general under s. 112.3189(1) or inspectors general under s. 20.055, the Florida Commission on Human Relations, and the whistle-blower's hotline created under s. 112.3189. However, **for disclosures concerning a local governmental entity, including any regional, county, or municipal entity, special district, community college district, or school district or any political subdivision of any of the foregoing, the information must be disclosed to a chief executive officer as defined in s. 447.203(9) or other appropriate local official.**

(emphasis added). Igwe's disclosures concerned the City, a "local government entity." Therefore, to comply with the this provision, he was required to make his disclosures to either the City's chief executive officer or to another "appropriate local official." The phrase, "other appropriate local official," has been interpreted to mean "an official or official entity who is affiliated with the violating governmental entity and **has the authority to investigate,** police, manage, or otherwise remedy the violation or act by the violating governmental entity." *Rustowicz v. N. Broward Hosp. Dist.*, 174 So.3d 414, 424 (Fla. 4th DCA 2015) (emphasis added); *see also Quintini v. Panama City Hous. Auth.*, 102 So.3d 688, 689 (Fla. 1st DCA 2012).

The City Commission has the authority to "**investigate** the financial transactions of any office or department of the city government and the official acts and conduct of any city official, and by similar investigations may secure information upon any matter." *See* Miami, Fla. Charter, § 14 (emphasis added). Consequently, it is clear that the City Commission is an "appropriate local official" regarding the City's alleged misconduct. We therefore find as a matter of law that Igwe's disclosures to the City Commission satisfy the requirements of section 112.3187(6). Additionally, there is nothing in the statute to suggest that Igwe was thereafter prohibited from discussing his disclosures when subpoenaed by the SEC. In fact, as our analysis of section 112.3187(7) reveals, the Act expressly protects such disclosures.

III. ***Igwe is a protected person under the Act***

Section 112.3187(7) lists precisely who may receive protection under the Act:

> **EMPLOYEES AND PERSONS PROTECTED.** This section protects employees and persons who disclose information on their own initiative in a written and signed complaint; who are requested to participate in an investigation, hearing, or other inquiry conducted by any agency or federal government entity; who refuse to participate in any adverse action prohibited by this section; or who initiate a complaint through the whistle-blower's hotline or the hotline of the Medicaid Fraud Control Unit of the Department of Legal Affairs; or employees who file any written complaint to their supervisory officials or employees who submit a complaint to the Chief Inspector General in the Executive Office of the Governor, to the

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employee designated as agency inspector general under s. 112.3189(1), or to the Florida Commission on Human Relations[.]

(emphasis added). A plain reading of the statute indicates that there are five categories of protected persons. *See Rustowicz,* 174 So.3d at 420–21 ("[T]he statute extends protection to five categories of employees[.]"). Each category is independent, ***155** as the list is separated by the use of semicolons and by the word "or," which "as used in a statute, is a disjunctive article indicating an alternative." *See TEDC/Shell City, Inc. v. Robbins,* 690 So.2d 1323, 1325 (Fla. 3d DCA 1997) (quoting 49 Fla. Jur.2d *Statutes* § 137, at 179 (1984)). A person who qualifies under **any** of these categories will be, by the operation of the plain language of the text, a person protected by the Act. *See Rustowicz,* 174 So.3d at 421–22 (holding that an audit associate, who qualified for protection under the Act because she was requested to participate in an investigation, did not need to make her disclosures in writing or on her own initiative).

Thus, Igwe is a protected person under section 112.3187(7), as his disclosures to the City Commission are covered under the category "employees who file any written complaint to their supervisory officials," while his subsequent disclosures to the SEC are covered under the category of persons "who are requested to participate in an investigation, hearing, or other inquiry conducted by any agency or federal government entity."

The City argues, and the trial court found, that the Act does not protect those who make disclosures as a part of their job description. Specifically, the City argues that: (1) the words "on their own initiative" in section 112.3187(7) means that any disclosures under the Act must be voluntarily offered; (2) the words "on their own initiative" apply to each of the five categories of protected persons under section 112.3187(7); (3) disclosures made while performing the duties of one's job are not voluntary; and therefore, (4) Igwe's disclosures were not protected by the Act, as he was required to make the disclosures in the course of doing his job as the IAG. We disagree with the City's interpretation for several reasons.

First, we note that the City's interpretation of "on their own initiative" runs contrary to the stated purpose of the Act, which is to prevent employers, such as the City, from taking retaliatory action against "**any person**" who properly discloses "improper use of governmental office, gross waste of funds, or any other abuse or gross neglect of duty on the part of an agency, public officer, or employee." § 112.3187(2) (emphasis added). The phrase "any person" clearly encompasses those who make disclosures because it is their job to do so, and those who make disclosures even though they have no employment obligation to do so.

Second, the Florida Supreme Court has unequivocally stated that the Act is a remedial statute, and should be liberally construed in favor of granting access to protection from retaliatory actions. *Irven v. Dep't of Health & Rehabilitative Servs.,* 790 So.2d 403, 406 (Fla.2001) (stating that "[section 112.3187(2)] could not have been more broadly worded"); *Martin Cnty. v. Edenfield,* 609 So.2d 27, 29 (Fla.1992); *Hutchison v. Prudential Ins. Co. of Am.,* 645 So.2d 1047, 1049 (Fla. 3d DCA 1994). Contrary to these authorities, the City's interpretation of "on their own initiative" as a prerequisite rather than as an option, would be a very strict and narrow reading of the Act, which would foreclose the possibility of whistle-blower protection for a large segment of the population, and be in contravention of section 112.3187(2), which affords statutory protection against retaliatory action against "any person" who properly discloses the improper conduct to the appropriate agency.

For example, the City's interpretation would foreclose the possibility of whistle-blower protection for those whose job it is, in whole or in part, to manage, report, or supervise governmental misconduct. Consider a manager, a foreman, or an administrator ***156** of a public or governmental agency who is tasked with supervising the employees of that entity. If such a person reports to his boss that the governmental entity is placing its employees at a substantial risk of injury due to the failure to provide these employees with the required safety equipment, then under the City's interpretation of "on their own initiative," he would not be protected by the Act if he was fired in retaliation for reporting the misconduct. This interpretation would be unreasonable and contrary to the express intent of the Legislature.

In summary, the City's interpretation of the statute runs contrary to the plain meaning of the language contained in the Act and the express intent of the Legislature to protect "any person" who discloses such misconduct. It also contradicts the requirement that the remedial statute be liberally construed to favor access to the statutory remedy, and significantly limits the number of people who may seek whistle-blower protection after disclosing governmental misconduct. We therefore reject the City's interpretation and hold that section 112.3187(7) protects those who make disclosures regarding "improper use of governmental office, gross waste of funds,

or any other abuse or gross neglect of duty on the part of an agency, public officer, or employee," even if they do so in the course of carrying out their job duties.

CONCLUSION

Based on our finding that section 112.3187(7), when read in pari materia with the rest of the statute, protects persons such as Igwe, whose job it was to make disclosures regarding improper governmental conduct, we conclude that the trial court erred by entering final summary judgment in favor of the City. We, therefore, reverse and remand for further proceedings. We find that the City's remaining arguments are meritless, and thus we decline to discuss them further.

Reversed and remanded.

All Citations

208 So.3d 150, 41 IER Cases 1253, 41 Fla. L. Weekly D2310

Footnotes

1 We do not express an opinion regarding whether Igwe suffered retaliatory action pursuant to section 112.3187(4), as that issue has yet to be decided by the court below.

2 We note that the federal case law cited to by the trial court in support of its conclusion that plaintiffs cannot avail themselves of whistleblower protection if their disclosures were required as a part of their jobs has been superseded by statute. *Balko v. Ukrainian Nat'l Fed. Credit Union*, 2014 WL 1377580, at *18 (S.D.N.Y. Mar. 28, 2014) (noting that "[i]n 2012, however, Congress overruled the reasoning of those cases by [amending the federal whistleblower statute to state] that an employee is not excluded from whistleblower protection simply because her disclosure is made during the normal course of duties.") (internal quotation omitted). Thus, we find that the trial court erred in relying on these federal cases and decline to discuss them further.

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